

Right to Refuse Unsafe Work Policy - Ontario

Intent

CPC Logistics is vitally interested in the ongoing health and safety of everyone in the workplace. If an employee encounters unsafe working conditions, or where the required equipment, tools, or machinery present a health and safety concern, the employee has the right to refuse any work that they believe to be unsafe. This policy has been adopted to provide appropriate guidelines for any potential work refusal or stoppage in accordance with Ontario's *Occupational Health and Safety Act* (OHSA).

Guidelines

Employees have the right to refuse dangerous work if they have reason to believe that:

- The use or operation of a machine, tool, or piece of equipment constitutes a danger to anyone in the workplace;
- A condition exists in the workplace that constitutes a danger to employees, including if workplace violence is likely to endanger them; or
- Any machine, tool, piece of equipment, the physical condition of any part of the workplace, or any other thing in the workplace is in contravention of the OHSA and that contravention is likely to endanger someone in the workplace.

Employees cannot refuse work if the refusal puts the health and safety of someone else in danger, or if the danger the employee is referring to is a normal condition of employment. Any employee who reasonably refuses unsafe work will continue to be paid their regular wages while present at work and while completing any work that is a reasonable alternative to the refused work.

Work Refusal Procedure

Whenever an employee chooses to refuse unsafe work, the employee should immediately report the circumstances of the refusal to their manager or supervisor. The manager or supervisor will investigate the report as soon as possible in the presence of the refusing employee and a worker member of the joint health and safety committee. Until the investigation is complete, the refusing employee is expected to remain in a safe place that is as close to the work as possible and remain available to the person conducting the investigation.

Once the investigation is complete, the manager or supervisor will take whatever reasonable steps possible to remedy any unsafe circumstances so the refusing employee can return to work safely. If after the initial investigation and any remedial steps have been taken the refusing employee still has reasonable grounds to believe that the work is unsafe, the employee may continue to refuse the unsafe work.

If an employee continues to refuse unsafe work after an investigation and any remedial action has been taken, the manager or supervisor will contact an inspector at the Ministry of Labour. The employee is welcome to do the same. An inspector will investigate the work refusal in consultation with the manager or supervisor who investigated the refusal, the refusing worker, and a worker member of the joint health and safety committee. During normal working hours,

the refusing employee must remain in a safe place and reasonably available to the inspector while they conduct their investigation.

After completing their investigation, the inspector will decide whether an unsafe circumstance is likely to endanger anyone in the workplace. This decision will be delivered in writing as soon as possible to all involved parties. While awaiting the findings of the inspector's investigation, the company may assign the refusing employee reasonable alternative work during their normal working hours. If an inspector determines something in the workplace is unsafe, the company will take immediate action to remedy the situation and ensure all employees can work safely.

Continuing Work That Has Been Refused

Where an employee continues to refuse the work they believe to be unsafe, the company may ask another worker to perform the refused work while waiting for the inspector to investigate and give a decision on the continued refusal.

Where a second employee is asked to perform work that has been refused, they will be informed of the initial work refusal, and the refusing worker's reasons for the refusal. This information must be provided in the presence of a worker member of the joint health and safety committee. The second employee also has the right to refuse the work.

Discipline for Refusal to Work

CPC Logistics employees will not be disciplined, threatened with discipline, intimidated or coerced, or have a penalty imposed on them for refusing to work if they have a reasonable belief that the work is unsafe or could endanger themselves or others.

If a work refusal was made in bad faith, or if the worker continues to refuse the work after a ruling from a Ministry of Labour inspector and subsequent remedial action has been taken, the company may use disciplinary action up to and including termination of employment.